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JUDGMENT SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition No. 236915/2018

Munir Ahmad Chishti

Vs.

Federation of Pakistan

JUDGMENT

Dates of hearing:	20.12.2024 & 25.04.2025
For the Petitioner:	Mr. Muhammad Saqib Jillani, Advocate.
For the Respondent:	Mr. Munir Ahmad, Assistant Attorney General.

Tariq Saleem Sheikh, J. – In 1985, the Petitioner joined the Police Service of Pakistan after qualifying the Central Superior Services Examination conducted by the Federal Public Service Commission. He was initially appointed in BS-17 and was promoted to BS-18, BS-19, and BS-20 over time. On 09.05.2014, he was promoted to BS-21 vide Notification No. F.3(1)/2012-E-3 (Police). In May 2016, he became eligible for promotion to BS-22 after completing two years of regular service in BS-21. The Petitioner asserts that although he satisfied the eligibility criteria, the High Powered Selection Board (HPSB), a special body headed by the Prime Minister, could not consider his case for promotion to BS-22 as no posts were available. In March 2017, several vacancies accrued in BS-22, but the HPSB could not convene because of the then Prime Minister’s engagements, particularly the ongoing proceedings in the Panama Papers case in the Supreme Court. During this time, the Establishment Division forwarded a list of eligible officers for promotion to BS-22 to the Prime Minister’s Secretariat in which the Petitioner’s name appeared at Serial No.7. On 30.07.2017, the Petitioner retired as Inspector General, Pakistan Railways Police, without having been considered for promotion, even though he was eligible and vacancies were available. The HPSB, which was due to convene in June 2017, held

meetings in October and December 2017 and promoted officers junior to the Petitioner, namely, Sardar Abdul Majeed, Capt. (Retd.) Arif Nawaz Khan, Ayub Qureshi, Mehar Khaliq Dad Lak, and Bashir Ahmed Memon.

2. The Petitioner states that, on 20.07.2017, shortly before his retirement, he made a representation to the Prime Minister to consider him for promotion, but he did not respond. Thereafter, on 04.01.2018, he submitted a representation to the Secretary, Establishment Division, seeking proforma promotion to BS-22, but it was never decided. Aggrieved, he has filed this petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”), seeking a writ of *mandamus* directing the Respondent/Federation to grant him proforma promotion to BS-22 “with all perks and privileges”.

3. The Petitioner contends that he rendered more than 33 years of unblemished service, received commendations and positive performance evaluations, and was never subjected to adverse remarks, disciplinary proceedings, or penalties. He maintains that he was fully eligible for promotion to BS-22 well before retirement but was denied consideration solely because the HPSB did not convene. According to him, he would likely have been promoted if the HPSB had met in June 2017, as originally scheduled. He argues that he should not be made to suffer for administrative lapses, especially when junior officers were subsequently promoted. The denial of consideration, despite the availability of vacancies and in the absence of any fault on his part, amounts to unfair treatment and, in substance, a penalty. He further argues that such denial violates established principles of service law and legitimate expectancy.

4. In its reply to this petition, the Respondent states that the Petitioner’s case was placed before the HPSB in order of seniority along with other officers in accordance with the Civil Servants (Promotion to the Posts of Secretary, BS-22 and Equivalent) Rules, 2010, during the meetings held on 01.08.2016 and 09.02.2017. However, he could not be considered due to the non-availability of vacancies. The Respondent adds that the Petitioner retired on 30.07.2017 before the next meeting of the HPSB could be convened. Hence, there was no wrongful prevention from promotion on its part. It further clarifies that, contrary to the Petitioner’s assertion, his representation seeking proforma promotion, submitted in

January 2018, was decided and declined through Memorandum No.2-17/2017-CP-I dated 11.10.2018. According to the Respondent, the Petitioner ought to have challenged that order before the Federal Service Tribunal under section 4 of the Service Tribunals Act, 1973 (the “STA”). It contends that the jurisdiction of this Court is barred under Article 212 of the Constitution and thus this petition is not maintainable.

5. Heard. Since the Assistant Attorney General has raised an objection regarding the maintainability of this petition under Article 199 of the Constitution, it is necessary to address this issue first.

6. The Civil Servants Act, 1973 (the “CSA”), is the fundamental law governing the terms and conditions of civil servants in the service of Pakistan, which is supplemented by the statutory rules made thereunder, statutory notifications (SROs), executive instructions, and policies issued by the Establishment Division (Office Memorandums/ OMs), the Estacode (Establishment Code),¹ and the Fundamental Rules (FR) and Supplementary Rules.² Section 9 of the Act provides the statutory framework for promotions, distinguishing between selection and non-selection posts. It states:

9. Promotion. – (1) A civil servant possessing such minimum qualifications as may be prescribed shall be eligible for promotion to a higher post for the time being reserved under the rules for departmental promotion in the service or cadre to which he belongs:

Provided that the posts of –

(a) Additional Secretary and Senior Joint Secretary may, in the public interest, be filled by promotion from amongst officers of regularly constituted Occupational Groups and services holding, on a regular basis, posts in Basic Pay Scale 20; and

(b) Secretary may, in the public interest, be filled by promotion from amongst officers of regularly constituted Occupational Groups and services holding, on regular basis, posts in Basic Pay Scale 21, in such manner and subject to such conditions as may be prescribed.

(2) A post referred to in sub-section (1) may either be a selection post or a non-selection post to which promotions shall be made as may be prescribed –

¹ The Estacode is a codified reference manual compiled by the Establishment Division, containing service laws, rules, executive instructions, Office Memorandums (OMs), and relevant judgments of superior courts. It serves as an authoritative guide for interpreting and applying civil service regulations.

² The Fundamental Rules and Supplementary Rules, originally framed under colonial-era legislation, which are still applicable through adaptation, provide foundational regulations on service conditions such as leave, pay, increments, tenure, and promotion.

- (a) in the case of a selection post, on the basis of selection on merit, and
- (b) in the case of a non-selection post, on the basis of seniority-cum-fitness.
- (3) ...

7. The Civil Servants (Promotion to the Post of Secretary, BS-22 and Equivalent) Rules, 2010, regulate the promotions to BS-22 in the Federal Government, specifying the criteria for eligibility and the evaluation procedure. Rule 3(1) thereof stipulates that the posts in BS-22 shall be filled in by promotion from amongst the officers specified in sub-rule (2) with the approval of the Prime Minister on the recommendations of HPSB. The Establishment Division facilitates the process administratively.

8. Promotion generally signifies advancement in rank and is granted on the basis of merit, seniority, or outstanding service, as determined by the applicable criteria.³ Although it is not a vested right,⁴ a civil servant who is eligible and otherwise fit has a legitimate expectation to be considered fairly and in accordance with law.⁵ The CSA does not expressly provide for proforma promotion, but the concept is well-recognized in administrative practice and service jurisprudence, particularly under the proviso to Fundamental Rule 17(1), which is reproduced below for ready reference:

FR-17(1) Subject to any exceptions specifically made in these rules and to the provisions of sub-rule (2), an officer shall begin to draw the pay and allowances attached to his tenure of a post with effect from the date when he assumes the duties of that post and shall cease to draw them as soon as he ceases to discharge those duties:

Provided that the appointing authority may, if satisfied, that a civil servant who was entitled to be promoted from a particular date was, for no fault of his own, wrongfully prevented from rendering service to the Federation in the higher post, direct that such civil servants shall be paid the arrears of pay and allowances of such higher post through proforma promotion or up-gradation arising from the ante-dated fixation of his seniority.

9. Proforma promotion is a notional advancement granted retrospectively to a civil servant who was eligible for promotion during service but was denied the opportunity due to no fault of their own and

³ *Arshad Ali v. WAPDA and others* [2020 PLC (CS) 1226], and *Ijaz Akhtar v. Secretary to Government of the Punjab and others* [2023 PLC (CS) 431].

⁴ *Secretary Ministry of Finance and others v. Muhammad Anwar* (2025 SCMR 153), *The Prime Minister and others v. Maj. Retd. Muhammad Habib Khan* [2016 PLC (CS) 621], *Arshad Ali v. WAPDA and others* [2020 PLC (CS) 1226], *Wadhu Mal v. Province of Sindh and others* [2023 PLC (CS) 1310].

⁵ See: *Federation of Pakistan v. Jahanzeb and others* (2022 SCMR 2020).

circumstances beyond their control. It confers only financial and symbolic benefits without reinstating the officer in service and does not affect the seniority of any serving official. Common justifications include delays caused by pending inquiries, policy embargoes, or administrative inaction. The Supreme Court has endorsed the principle underlying proforma promotion in ***Secretary Ministry of Finance and others v. Muhammad Anwar*** (2025 SCMR 153). It stated:

“A civil servant who has retired after attaining the age of superannuation cannot claim to be considered for promotion to a higher post. After superannuation the civil servant may, however, claim a right to be considered for pensionary benefits in accordance with the policy or a scheme adopted by the competent authority. The proviso to FR 17(1) of the Fundamental Rules empowered the appointing authority to direct that a civil servant shall be paid the arrears of pay and allowances of a higher post through proforma promotion if satisfied that the civil servant who was entitled to be promoted from a particular date was, for no fault of his own, wrongfully prevented from rendering service to the Federation in the higher post. The benefit is obviously intended to compensate a civil servant for being deprived of a right to be considered for no fault on the latter’s part. The scheme for considering a claim regarding the proforma promotion is distinct from that of promotion of a civil servant to a higher post.”

10. It is noteworthy that the aforementioned proviso to FR-17(1) was omitted vide SRO No.965(I)/2022 dated 20.05.2022. The Finance Division, vide Office Memorandum dated 20.05.2022, has, *inter alia*, provided that cases of retired civil servants could be placed before the relevant forums if specific orders of judicial forums existed. Moreover, according to the guidelines, cases received before 20.05.2022 could also be entertained.⁶ Since the Petitioner’s representation and the instant petition predate the omission, the legal framework in force before 20.05.2022 remains applicable to his case. Therefore, the omission of the proviso does not impact the Petitioner’s claim.

11. Article 212(1)(a) of the Constitution stipulates that the appropriate Legislature may, by Act, establish tribunals with exclusive jurisdiction over matters relating to the terms and conditions of persons who are or have been in the service of Pakistan, including disciplinary issues. Article 212(2) states that where such a tribunal is established, no other court shall entertain proceedings in respect of matters within the tribunal’s jurisdiction.

⁶ See: *Secretary Ministry of Finance and others v. Muhammad Anwar* (2025 SCMR 153).

12. The STA was enacted pursuant to the legislative mandate under Article 212 of the Constitution and creates a forum for civil servants to challenge decisions affecting their service. Notably, the expression “civil servant” under section 2(a) of the Act and Article 212(1)(a) of the Constitution includes both those who are or have been in the service of Pakistan. Sections 4, 4A, and 5 of the Act outline the scope of jurisdiction and powers of the Service Tribunal. Section 4 provides a right of appeal to a civil servant aggrieved by a final order relating to the terms and conditions of service. As per the proviso (b) to section 4(1) of the Act, no appeal lies to the Service Tribunal against an order or decision of a departmental authority determining the fitness or otherwise for a person to be appointed to or hold a particular post or to be promoted to a higher grade. In ***Government of Pakistan and others v. Hameed Akhtar Niazi and others*** [PLD 2003 SC 110 : 2003 PLC (CS) 212], the Service Tribunal directed that the appellant be granted proforma promotion from the dates his juniors were promoted and ordered re-fixation of his pay and pension. The Supreme Court set aside that order, holding that promotion is not a right and falls exclusively within the discretion of the competent authority. Seniority is only one factor among others, such as competence, antecedents, and availability of posts, which must be considered in each case. The Service Tribunal had no jurisdiction to grant retrospective promotion or to assume the functions of the appointing authority, particularly where the competent forum had not made any evaluation.

13. The High Court’s jurisdiction in matters of proforma promotion has been examined in several cases. I would refer to two of them. In the ***Chief Secretary, Government of Punjab, and others v. Ms. Shamim Usman*** (2021 SCMR 1390) the officer filed a constitutional petition before the High Court, seeking a direction to the Department to finalize her promotion case and to grant her promotion with effect from 26.05.2012, along with all consequential service benefits. The High Court entertained the petition and directed the competent authority “to immediately place the officer’s case for promotion from Grade 19 to Grade 20 before the authority for consideration in accordance with law, rules, and regulations.” It further ordered that the exercise be completed within a month. The Department failed to take substantive steps in this regard,

whereupon the officer filed a contempt petition. The High Court disposed of the said petition when the Department placed on record the competent authority's decision rejecting her claim to proforma promotion. However, it left it open to her to challenge that decision. Instead of approaching the Service Tribunal, the officer filed a second constitutional petition, upon which the High Court directed the Department to grant her proforma promotion to Grade 20. The Supreme Court reversed that judgment, holding that the High Court lacked jurisdiction in matters falling within the exclusive domain of the Service Tribunal under Article 212 of the Constitution, except where the order in question determines "fitness" under section 4(1)(b) of the STA. The relevant excerpt is reproduced below:

"The High Court, therefore, has no jurisdiction to entertain any proceedings in respect of terms and conditions of service of a civil servant which can be adjudicated upon by the Tribunal under the Act. It is only under section 4(1)(b) of the Act that no appeal can lie to a Tribunal against an order or decision determining the 'fitness' of a person to be appointed or promoted and falls outside the purview of the jurisdiction of the Tribunal. In order to fall in the exception envisaged under section 4(1)(b) of the Act, the order must determine 'fitness' of a civil servant to an appointment or promotion."

14. In the ***Province of Punjab v. Hafiz Muhammad Kaleem-ud-Din*** (2024 SCMR 689), a matter arising under the Punjab Civil Servants Act, 1974, a provincial law, the civil servant filed a constitutional petition after his retirement seeking proforma promotion from BPS-18 to BPS-19. The High Court initially directed the Department to decide his application in accordance with the law. The competent authority rejected his request, whereupon he filed a second writ petition. The High Court allowed it and directed his promotion and release of pensionary benefits. The Supreme Court set aside that judgment on two grounds: first, that the post in question was a selection post, which under section 8(6)(a) of the Punjab Civil Servants Act, 1974, could only be filled on merit, not seniority; and second, that Article 212 of the Constitution bars the jurisdiction of High Courts and civil courts in matters concerning the terms and conditions of civil servants, and that bar is absolute.

15. The High Court, as a constitutional court, should always be mindful of the jurisdictional exclusion contained under Article 212 of the Constitution. Any transgression of this constitutional limitation will render its order void and illegal. Therefore, unless the jurisdiction of the Service

Tribunal is ousted under section 4(1)(b) of the STA, as described above, the assumption of jurisdiction by the High Court in respect of matters of terms and conditions of a civil servant is unconstitutional and impermissible.

16. In the present case, the Petitioner submitted a representation seeking consideration for promotion to BS-22, which was declined by the Establishment Division vide Memorandum No. 2-17/2017-CP-I dated 11.10.2018. Although this Memorandum does not show that the matter was placed before the HPSB or that the Prime Minister made any determination on the Petitioner's fitness or eligibility, it nonetheless formally conveys a final decision by the Department refusing further processing of the Petitioner's case. Therefore, it constitutes an appealable order for the purposes of section 4 of the STA. The appropriate course for the Petitioner was to file an appeal before the Service Tribunal. Accordingly, the present petition is barred under Article 212(2) of the Constitution.

17. The power to grant proforma promotion lies exclusively with the appointing authority, who must be affirmatively satisfied that the civil servant was, through no fault of their own, wrongfully prevented from serving in the higher post. This Court lacks jurisdiction not only because no such determination has been made but also for the reason that it cannot assume the functions of the appointing authority.

18. For the above reasons, this petition is not maintainable and is, therefore, **dismissed**.

(Tariq Saleem Sheikh)
Judge

Ahsan

Announced in open court on _____

Judge

Approved for reporting

Judge